

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

March 14, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Collins. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Ms. Ash, agenda item #17 was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Ms. Ash and Mr. Allen, agenda items #16, 22(b) and 22(d) were removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Dr. Rinne and Mr. Brown, agenda item #23(a) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 28, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Procedural inquiry was made concerning the process to divide the question. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Mr. Allen moved to divide the question to allow for a separate vote on the voucher payable to Ameri-Tech HVAC Services, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Mr. Spiker moved to approve the voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Mr. Pierson moved to remove a voucher payable to J.R. Tree Experts from the voucher payables listing, seconded by Mr. Brown. Barb Dorr, City Treasurer, advised her office was in receipt of an IRS (Internal Revenue Service) Notice of Levy against J.R. Tree Experts, and, upon inquiry, Dan White, City Attorney, advised he had reviewed the Notice of Levy and that it requires the City to pay whatever is owed to J.R. Tree Experts be payable and submitted to the IRS. Mr. Brown raised a point of clarification on whether the motion, in addition to removing it from the payables listing, should also include that it be voided with payment of monies due issued to the IRS. Ms. Dorr and Mr. White stated their agreement that the motion should include wording that the voucher should be removed and voided, and that the

City Treasurer is authorized to issue payment to the IRS. Mr. Brown offered a friendly amendment to Mr. Pierson's motion to indicate the motion proposed is to remove the voucher payable to J.R. Tree Experts from the payables listing; void the current voucher, and authorize the City Treasurer to issue payment of monies due to the IRS, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present.

Mayor Kaysen opened a public hearing to receive comments and input regarding the intent of the City of Cheyenne to submit an application for funding for the Wyoming Business Council's Business Ready Community Grant and Loan, Managed Data Center Cost Reduction Program, to assist in the establishment of a Data Center, funding electricity and broadband expenses for three years. Cindy Schneider, Grants Manager, briefly reviewed the purpose of the proposed application, which is to assist Thought Equity Motion, Inc. to open a tier two data center project in a portion of the former SafeCard Building on Pershing Blvd. She discussed elements of the data center project, which involves the Wyoming Business Council; local benefits; an agreement involving the project that is on the current meeting agenda for referral to the next Finance Committee meeting, and clarified the City's role in serving as a sponsor for the project, which involves no cost to the City. She stated the State Loan and Investment Board (SLIB) will have the final decision on approving the grant application, and acknowledged Mike Emerson with Thought Equity Motion, Inc. and Tom Johnson, Regional Director, Wyoming Business Council, were present to answer any questions. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

"An Ordinance amending Section 5.12.060, Sales and Consumption--Restrictions, of Chapter 5.12, Alcoholic Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, to authorize the issuance of a Malt Beverage Permit or Catering Permit limited to malt beverages, with open container waiver, in conjunction with adult softball/baseball games and tournaments at the Pioneer Park Baseball Complex." Major Dorr expressed opposition to the ordinance, citing concerns regarding beer sales at a family oriented activity; liability; 2009-10 statistical information from the Wyoming Association of Sheriffs and Chiefs of Police involving alcohol related arrests and convictions. Reporting for Finance Committee, Mr. Valdez advised there was no recommendation on this item from Finance Committee. Mr. Brown moved to approve, seconded by Ms. Ash. Upon inquiry, City Clerk Carol Intlekofer stated the definition of a malt beverage is provided in Wyoming Statutes, adopted by the City, and that anything that can be purchased through a malt beverage distributor meets the definition of a malt beverage. Comment followed on other malt based beverages that can be consumed in addition to beer under a malt beverage permit. Ms. Ash moved to postpone for 2 weeks (to March 28, 2011) for further review with regard to potential amendments to the ordinance, seconded by Mr. Brown. Sharon Guernsey encouraged Council members to consider impacts of broadening malt beverage distributions and the social norms and environment within the community, and suggested moving forward with action on the ordinance, as presented, at the current meeting. Matthew Bowen spoke in favor of postponement to allow time for Council members to evaluate the facts affiliated with the ordinance. Discussion included the following topics: Opposition to postponement; support for postponement; postponement to allow additional time to review proposed language changes to resolve some of the concerns that have been raised; equality issues involving other City-owned sites where consumption and malt

beverage/catering permits are allowed; Pioneer Park baseball field designed for youth baseball activities, and introduction of another ordinance on the meeting agenda, to be referred to Finance Committee, involving temporary permits of this type. Upon inquiry, Ron Kailey, owner, Cheyenne Grizzlies, indicated a 2 week postponement will not affect the team's playing season. Motion to postpone carried. Voting "yes" -- Mr. Allen, Ms. Ash, Mr. Brown, Dr. Rinne and Mayor Kaysen. Voting "no" -- Ms. Broyles, Mr. Pierson, Mr. Spiker, and Mr. Valdez.

"An Ordinance amending Ordinance No. 3419, which established a new compensation schedule for members of the City Council of the City of Cheyenne, to clarify the manner in which compensation is to be computed, and providing for an effective date." Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present. (#3914)

"An Ordinance repealing in its entirety, Chapter 8.44, Solid Waste, and creating a new Chapter 8.44, Solid Waste, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming." Matthew Bowen expressed his concerns with the City operating as a "roll-off monopoly"; questioned the legal authority of the governing body; commented in support of private entrepreneurs securing the right to provide roll-off container services; ordinance effect on private businesses; use of authority; the need for clearly stated reasons for support/non-support of the ordinance by members of the governing body, and questioned the need for the ordinance to include wording regarding roll-off container services by private businesses. John Felzien questioned enforcement responsibility relative to violations of the ordinance and spoke in opposition to the City having a monopoly in the roll-off business. Upon inquiry, Dan White, City Attorney, reviewed research he had conducted regarding municipalities' authority to exercise a monopoly relative to collection and disposal services of garbage and waste within City limits. Jim Elias, Public Works Director, clarified that since the last City Council and Finance Committee meetings, a meeting with private haulers had been held to discuss the issue of roll-off containers being provided by private businesses, and that proposed language changes to the ordinance have been generated for review by the City attorney for consideration as an amendment, noting a 2 week postponement was requested at Finance Committee. In response to public inquiry, Mr. Elias stated the City's roll-off provider requirements are to protect the health, safety and welfare of citizens. Mayor Kaysen clarified municipal government has the authority to conduct business pursuant to Wyoming Statutes, and case law. Vicki Nemecek, Assistant Public Works Director, reviewed authority provided by Wyo. Stat. § 15-1-103, and language contained in the ordinance allowing the City to make reasonable rules and regulations for hauling refuse. Upon further public inquiry, Mr. Elias and Mayor Kaysen provided information on the cost to the City to haul solid waste to the landfill in Ault, CO, which helps extend the life of the City's landfill. Frank Cole, developer, discussed his research of City Code wording relative to roll-offs, and stated his belief that the City should not be in the roll-off business and should allow private business to take it over. Lee Bayne expressed concerns that additional research should be conducted before third reading and commented that a more "dynamic way" was needed procedurally for public engagement. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Mr. Valdez moved to postpone for 2 weeks (to March 28, 2011) to allow further discussion between staff and private haulers, seconded by Dr. Rinne. Upon inquiry, Mr. Elias stated the meeting with the private providers of roll-off containers had been productive and stated his belief that a consensus had been reached on proposed ordinance

changes, and that he will share a copy of the proposed changes with the private haulers following City attorney review and approval. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

"An Ordinance amending various sections of Chapter 5.36, Circuses, Carnivals, Exhibitions, and Amusement Rides, within Title 5, Business Licenses and Regulations, of the Cheyenne City Code." Mr. Valdez moved to approve on second reading, seconded by Mr. Spiker. Discussion followed regarding wording of certain sections of the ordinance with Bruce Wilson, Chief Building Official, explaining that a request to amend by substitute would be made at the next Finance Committee to correct editorial errors. Discussion continued on reason for removal of current City Code wording involving garbage, refuse and water fees; illumination requirements involving a change from 5 foot candles to 1 foot candles; assembly of rides; current and proposed ride inspection process, and Level Three National Association of Amusement Ride Safety Official (NAARSO) requirement and responsible party to provide/hire a NAARSO certified inspector to conduct ride inspections. During discussion, Mr. Wilson provided information on topics raised. Concerns were expressed regarding insurance criteria and proof of coverage, party/parties responsible for retaining services of the NAARSO inspector; inspection procedures during ride set-up and final inspection; ride safety issues, and current potential City liability connected with Building inspectors providing initial ride inspections. Upon inquiry, Dan White, City Attorney, advised an owner or licensee of an amusement ride, or the insurance company providing coverage, can retain the NAARSO certified inspector, noting the inspection has to be accepted by the insurance company before it will issue the coverage policy so the safeguard for the City is the requirement that a copy of the ride inspection certificate and insurance policy must be in place before the ride is put into operation. Upon inquiry, Mr. Wilson reviewed concerns with Building inspectors providing ride inspections once a year vs. a NAARSCO certified inspector who is the most familiar with the elements of ride inspections. Mr. White reviewed risks associated with having City employees inspecting the rides and stated the ordinance will reduce the City's liability risk. John Volk, insurance agent, provided information on insurance coverages generally. Mike White, Building Department inspector, provided information on the NAARSO certified inspector who is involved with inspection of rides for the Cheyenne Frontier Days celebration, stating the inspector is hired by the owner's insurance company and is very highly regarded and qualified in the industry. Motion carried. Voting "yes" -- all members of the governing body present.

"An Ordinance submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Tuesday, May 10, 2011, the following question: 'Shall a special assessment of ten (10) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. §15-9-217 (b) and (c) for the purposes of (1) administrative costs; (2) landscaping or maintenance of public areas; (3) planning or management of development or improvement activities; (4) promotion of public events; and (5) activities in support of business recruitment and development?'" Mr. Valdez moved to approve on second reading, seconded by Mr.

Pierson. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash voting “no”.

“An Ordinance De-Annexing from the City of Cheyenne, a parcel of land situate in a portion of the south half of Section 29, T.14 North, R. 65 West, 6th P.M., City of Cheyenne, Laramie County, Wyoming, containing 37.0 acres, more or less (located in the vicinity North of Interstate 80, East of East Pershing Boulevard, and East of the KOA Campground area).” John Volk, Campstool Land Co., reviewed the property location involved in the petition to de-annex; isolation of area; use of nearby properties; lack of nearby availability to City water and sewer services; property ownership and zoning history, and future plans for the site if de-annexation is approved which would involve County platting and possible covenants. Reporting for Public Services Committee, Ms. Ash advised there was no recommendation on this item from the Committee. Mr. Spiker moved to approve on second reading, seconded by Mr. Valdez. Discussion included: Concerns with de-annexing the property; regulations for City vs. County zoning and development requirements, including landscaping; property and proposed future use of the property if it is de-annexed, and area serving as part of the aesthetic gateway to that side of the community. Upon inquiry, Matt Ashby, Planning Services Director, discussed differences between City and County zoning classifications and uses allowed; recently adopted new County subdivision regulations with landscaping requirements less than what is required in the City, and water and sewer requirements relative to use of the property. Upon inquiry, Mr. Volk stated his company would create property covenants, stating typically covenants address such things as exterior building types, fencing, structure height; advised City Code allows for a request for landscaping variances through the Board of Adjustment, and noted the biggest issue is providing restrooms on the property. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash, Ms. Broyles and Mr. Pierson voting “no”.

“An Ordinance amending a portion of Ordinance No. 3891 by modifying the conditions within the zoning classification of MUB Conditional Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“An Ordinance amending Section 5.12.040, Issuance-Term of Licenses and Permits–Renewal of Annual Licenses, of Chapter 5.12, Alcoholic Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, to impose certain additional restrictions on the sale of alcoholic beverages pursuant to temporary malt beverage permits and catering permits on City-Owned and City-Managed property” -- referred to Finance Committee (sponsor - Mr. Allen).

“A Resolution authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving fund for an amount not to exceed \$9,400,000.00 for the Southern Water Transmission Main - Phase II Project and authorizing the Director of the Board of Public Utilities to execute the application and all related loan documents.” Mr. Valdez moved to adopt, seconded by Mr. Brown. Upon inquiry, Herman Noe, Board of Public Utilities, clarified a portion of the Southern Water Transmission Main is adjacent to the South Side Water and Sewer District, and verified, per wording contained in the Resolution, that a rate increase may be affiliated with funding the

project. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”. (#5265)

“A Resolution authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan program, for funding through the Managed Data Center Cost Reduction Grant program.” Mr. Valdez moved to adopt, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present. (#5266)

Following a 12 minute recess, Mayor Kaysen reconvened the meeting at 8:20 pm.

[CA] “A Resolution authorizing the City Treasurer to discharge uncollectible debts in the amount of \$94,648.02, pursuant to Wyo. Stat. §16-4-502” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A Resolution directing the City Clerk to defer acceptance of applications for one (1) Retail and one (1) Bar and Grill liquor license, which licenses will revert to the City of Cheyenne on March 31, 2011, and one (1) additional Retail liquor license, which may be authorized to the City pursuant to provisions of Wyo. Stat. § 12-4-101, and establishing guidelines to be used by the Governing Body of the City of Cheyenne to review applications for said licenses” -- referred to Finance Committee (sponsors - Dr. Rinne and Mayor Kaysen).

[CA] County Preliminary Plat for Overland Trails Business Park for a portion of the E½ of Section 14 and a portion of the NE¼ of Section 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of and adjacent to I-25, south of W. College Drive) -- referred to Public Services Committee.

[CA] County Preliminary Plat for Niobrara Energy Park for a parcel of land situated in a portion of the N½ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of S. College Drive (behind Lighthouse Baptist Church and north of Laramie County Community College) -- referred to Public Services Committee.

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for Phase II State salary. Motion (per Consent Agenda) carried. (#5647)

Agreement between the City of Cheyenne, Clear Creek Land Company, LLC, Swan Ranch, LLC, and Granite Peak Development, LLC, to specify infrastructure financing, timing of annexation, timing of community facilities fee payment, and access standards to support economic development efforts in Cheyenne (Annexation Revolving Loan and 2007-2010 1% Sales Tax funds). Matt Ashby, Planning Services Director, advised there is an update to the map and other wording changes since a substitute had been presented at the last Finance Committee meeting, and requested the substitute approved at Finance be replaced with a new substitute (dated 3/14/11). Mr. Valdez moved to approve, seconded by Mr. Brown. Mr. Valdez moved to amend by substitute, seconded by Mr. Brown. Comments followed on not approving the substitute addressed at Finance Committee pursuant to Mr. Ashby’s request for a new substitute.

Motion failed. Voting “no” -- all members of the governing body present. Mr. Pierson moved to amend by substitute, seconded by Mr. Spiker. Mr. Ashby clarified the substitute dated March 14, 2011 provides for clerical corrections, updates to the map, and refines language defining culverts. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” -- all members of the governing body present. (#5648)

Contract to purchase land within the Swan Ranch property pursuant to a Development Agreement with Granite Peak Development, LLC (Community Facilities fees). Matt Ashby, Planning Services Director, requested the substitute presented and recommended for approval at Finance Committee be voted down and a new substitute dated March 14, 2011 instead be approved. Mr. Valdez moved to approve, seconded by Mr. Pierson. Mr. Valdez moved to amend by substitute, seconded by Mr. Pierson. Mr. Ashby reviewed changes included in the proposed new substitute involving typographical corrections, elimination of sections concerning liquidated damages and references to earnest money, and updates to the mapping and legal descriptions. Motion to amend failed. Voting “no” -- all members of the governing body present. Mr. Pierson moved to amend by substitute dated March 14, 2011, seconded by Mr. Valdez. Motion to amend carried. Voting “yes” -- all members of the governing body present. Upon inquiry regarding a calculated cost to turn the area into public open space, Rick Parish, Parks and Recreation Director, advised research has not yet been conducted regarding estimated costs to construct the public open space area, and that short-term use of the area will continue to be grazing until the long-term goal to develop the public open space amenity can be implemented. Mr. Ashby clarified the Agreement provides an opportunity for the developer to enter into a grazing lease with the City which would be based similarly to the grazing lease involving the Belvoir Ranch. Comment followed on the need to evaluate the cost affiliated with developing and maintaining the public open space. Main motion as amended by substitute carried. Voting “yes” -- all members of the governing body present. (#5649)

[CA] Agreement between the City of Cheyenne and Boys and Girls Club of Cheyenne, Inc. to lease the city owned building located at 1700 Snyder Avenue, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ayres Associates for the Holliday Park Connector Project for a pedestrian connection (Greenway funds) -- referred to Finance Committee.

[CA] Funding Agreement between the City of Cheyenne, and the Wyoming Department of Transportation, for the East Pershing Boulevard Reconstruction Project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Thought Equity Motion, Inc. establishing responsibilities and conditions of requirements set forth by the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Managed Data Center Cost Reduction Grant Program -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, and Cheyenne Frontier Days, Inc., for usage of city-owned parcels and structures for the 2011 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for wellness coaching -- referred to Finance Committee.

[CA] Amendment No.1 to Contract No. 5381 Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for West Lincolnway enhancements. Motion (per Consent Agenda) carried. (#5381)

Contract Modification No. 1 to Contract No. 5377 between the City of Cheyenne, Sanitation Division, and Alpine Waste and Recycling for sorting, processing and marketing of single stream (recyclable) materials. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry regarding Exhibit A of the contract and the types of plastics and glass accepted, Jim Elias, Public Works Director, clarified discussions with Alpine indicates they may be willing to accept more plastics, but advised glass is not feasible at this time as it is considered to be a contaminant in the recycling process. He clarified the contract modification only involves a one year extension to the existing agreement term. Motion carried. Voting "yes" -- all members of the governing body present. (#5377)

[CA] Contract Modification No. 2 to Contract No. 5220 between the City of Cheyenne, Sanitation Division, and Tatooine Electronic Systems for the recycling of electronic. Motion (per Consent Agenda) carried. (#5220)

Amendments No. 3 and No. 4 to Contract No. 5516 between the City of Cheyenne and Long Building Technologies, Inc. to continue energy efficient upgrades including improvements to heating and controls in the Municipal Building, Civic Center, Police Department, Fire Station #1, Fleet Maintenance, Tire and Lube Shop, Logan Avenue Shop, Street and Alley Shop and Cemetery Shop (Energy Grant funds). Mr. Valdez moved to approve in an amount not to exceed \$775,838.94 (includes grant funding and City's match), seconded by Mr. Spiker. Upon inquiry, Vicki Nemecek, Assistant Public Works Director, provided information on the availability of savings measurement data, noting preliminary measurements have been taken but completion of the Brimmer Park area must be completed before an overall assessment can be made. She advised review of total utility costs shows the City is realizing some savings but an accurate assessment of savings will not be available until more historical data is known. Ms. Nemecek reviewed what buildings and projects are included in the amendments. In response to query concerning the number of years to realize savings/payback, Ms. Nemecek stated the median would be an average of a 20 year payback, and discussed life expectancy of equipment relative to realization of savings. Comments followed on upgrades through replacement of aging equipment and life expectancy of equipment. It was noted the City has the option to not request any further amendments under the original contract. Motion carried. Voting "yes" -- all members of the governing body present. (#5516)

[CA] Contract Modification No. 1 to Contract No. 5513 between the City of Cheyenne and Reiman Corp. for General Contracting Services - East Cheyenne Greenway - Phase IIIb (Greenway fund). Motion (per Consent Agenda) carried. (#5513)

Consideration of Bid #R-21-11 for furnishing 76 new computers and operating systems for the City of Cheyenne, Information Technology Division (2007-2010 1% Sales Tax Capital Equipment fund). Mr. Valdez moved to accept the bid from Howard Industries, Inc., Laurel, MS, in an amount not to exceed \$39,672.00, seconded by Mr. Brown. Upon inquiry, Tyler Nelson, Assistant Director, Information Technology Division, provided information on the age of the computers that will be replaced; software compatibility issues involving older computers and the Division's annual user replacement plan. Concern was expressed with the City's Lotus Notes e-mail system and effects of not acquiring the proposed equipment for a year to possibly utilize the funds to acquire a different e-mail system. Mr. Nelson confirmed the e-mail software being used is up-to-date and is comparable to other software, and stated upgrading to a new e-mail system would be more costly than the funding that is available for the proposed annual equipment purchases. Theresa Snyder, Director of Information Technology, reviewed Lotus Notes' functionality elements; implementation of the software program pursuant to past City Council direction, history of the annual equipment replacement plan and effects on users if the plan were not in place, and explained the process entailed in researching e-mail documents pursuant to a recent request for public records. Comments followed on use of 5th penny money, as authorized by voters through the 1% ballot question, for the purchase vs. an e-mail system, and cost per computer per the bid submitted. Ms. Snyder advised the bid amount was the lowest that has been received in past years, and Mr. Nelson explained the cost of a business class workstation computer is different, including maintenance/replacement provisions, than the cost of a computer for home use. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #M-8-11 for a contract between the City of Cheyenne and Superior Electric, Cheyenne, Wyoming, for the Brimmer Park Lighting Correction project (Partial 2007-2010 1% Sales Tax and Energy Grant funds). Motion (per Consent Agenda) carried (amount not to exceed \$59,500.00). (#5650)

Consideration of Bid #M-7-11 for a contract between the City of Cheyenne and Scotch Boy, Inc., Cheyenne, Wyoming, for the David R. Romero South Cheyenne Youth Activity and Community Center project (Partial Community Facility fees and donations). Mr. Valdez moved to accept the bid in an amount not to exceed \$156,614.18, seconded by Mr. Pierson. Mr. Valdez moved to amend by substitute which reduces the not to exceed amount to \$137,206.48, seconded by Mr. Pierson. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#5651)

Consideration of Bid #R-22-11 for furnishing one new rough mower from Greenline Equipment, Casper, Wyoming, for the Grounds and Facilities Division (2007-2010 1% Sales Tax Capital Equipment fund). Jason Sanchez, Director of Grounds and Facilities, explained the need for the new mower that has a wider swath and is more fuel efficient, stating 2 mowers would be involved as trade-ins. He discussed maintenance costs and downtime being incurred with the current mower model; companies who submitted bids and the different models that

were bid; purpose for issuance of an addendum to the bid that allowed acceptance of another bidder, and maintenance, equipment replacement and service requirements outlined in the bid document. Aaron Morrison, Greenline Equipment, provided an update on revisions and improvements that have been made to the type of mower unit submitted in the bid and stated past models have experienced problems in such areas as air circulation, hydraulics, valves and the motordeck. He confirmed Greenline can meet the 24 hour response service and equipment replacement requirements. Mr. Valdez moved to approve the bid submitted by Greenline Equipment, Casper, WY, in an amount not to exceed \$27,826.00, seconded by Mr. Pierson. Upon inquiry regarding any needed equipment repairs, Mr. Morrison clarified the machine could be returned to Casper for repair, or a basic repair might be done on-site through a company mobile repair unit, and they would do whatever needed to be done within the 24 hour repair time. Upon inquiry, Mr. Sanchez explained it was difficult for him to make a recommendation on the low bid submitted based on past maintenance cost and downtime experience involving the current mower. He noted that Greenline met bid specifications, have submitted documentation supporting improvements to the mower unit contained in their bid, and that Greenline was the lowest bidder. Upon inquiry, Mr. Morrison provided equipment warranty information for the model that was bid. Discussion included: Bid specifications generally vs. by specific models/brands; purchasing procedures; maintenance cost and equipment reliability concerns; warranty, and bid tabulation/recommendation information issued by the Purchasing Division. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Spiker voting "no".

[CA] Consideration of Bid # R-14-11 for furnishing one new 3/4 ton pickup with snow plow for the City of Cheyenne, Transit Division (Federal Transportation Grant funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-23-11 for the surplus sale of 115 Motorola Mobile Radios from the City of Cheyenne, Police Department -- referred to Finance Committee.

[CA] Consideration of Bid #M-9-11 for a Contract between the City of Cheyenne and Knife River for annual Contract for hot plant mix, asphalt tack oil and cold mix for the Street and Alley Division -- referred to Finance Committee.

[CA] Consideration of Bid #M-10-11 for a Contract between the City of Cheyenne and Knife River for annual Contract for furnishing aggregate for the Street and Alley Division -- referred to Finance Committee.

[CA] Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 740 Carlson; Cheyenne OTB, LLC d/b/a Wyoming OTB, retail, 3307

Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a [to be determined], retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust d/b/a Mayflower, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Qiu Wei Sheng d/b/a Golden House Chinese Rest., rest., 1651 Carey Ave., #8; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Rest. and Lounge, retail, 300 E. 8th Ave.; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Trujillo, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Real Mexican Foods, Inc. d/b/a Los Amigos Rest., rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant, rest., 216 E. 17th St.; Wild West Apple Ventures d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; RGLM, Inc. d/b/a Avanti Italian Rest., rest., 4620 Grandview Ave.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; OC Cheyenne, LLC d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Soo Hyun Choi, LLC d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Suite 1901, CLLC d/b/a The

Winery at 1901, winery, 1901 Central Ave.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Suite 1901, CLLC d/b/a Suite 1901, bar & grill, 1901 Central Ave. Motion (per Consent Agenda) carried.

Appointment of Katherine Maggos, KaSandra Camp, Como Boyle, Michael Sandidge and Mark McKay, to the Mayor's Council for People with Disabilities. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-appointment of James Ditsch, Daryl Hensel and Jason Lewis to the Mayor's Council for People with Disabilities. Mr. Brown moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Request to change retail liquor dispensing room location and dimensions for Cloud 9, Inc. d/b/a Cloud 9, 300 East 8th Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Announcement was made of the appointment of Dr. Mark Rinne to the Downtown Development Authority Board to be confirmed March 28, 2011.

Under other business:

Ms. Broyles inquired about the status of a liquor licensee who had failed Police Department underage compliance checks pursuant to review of annual liquor licensee renewals. Carol Intlekofer, City Clerk, advised representatives from the establishment were present at the Finance Committee meeting, but no questions were posed to them. Comments included indication that the licensee involved has indicated TIPS training would be provided to employees and time frame, per City Code, in which employees must receive training. Ms. Intlekofer noted that Police Chief Brian Kozak and Officer Steve Neisen had discussed City Code wording regarding the time frame for training at the last City Council meeting and had indicated a review should be made to see if any clarification changes should be considered.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 9:34 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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